

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: June 15, 2026

Department C-15 hears law and motion on Mondays at 1:45 p.m.

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Blue Atlas, LLC v. Those Certain Underwriters 2023-01332937 Summary Judgment/ and or Summary Adjudication	Defendant's Motion for Summary Judgment, or in the Alternative Summary Adjudication regarding Plaintiff's Second Cause of Action for Breach of Implied Covenant of Good Faith and Fair Dealing is GRANTED. The Court declines to rule on the objections submitted on the basis they are immaterial to the disposition of the motion. A claim for breach of contract requires: "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." <i>D'Arrigo Bros. of California v. United Farmworkers of America</i> (2014) 224 Cal.App.4th 790, 800. Defendant has met its burden of proving Plaintiff cannot establish one of the essential elements of its breach of contract claim. The builds risk insurance policy (the Policy) defines a "Covered Property" as a "Building Under Construction, meaning the building or structure described in the Declarations while in the course of construction"
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		The phrase "under construction" within the insurance context has already been interpreted by the California Supreme Court in <i>TRB Investments, Inc. v. Fireman's Fund Ins. Co.</i> (2006) 40 Cal.4th 19. The property was not under construction at the time either fire was started. In response to Defendant's special interrogatory requesting all facts regarding Plaintiff's contention the property was "in the course of construction," Plaintiff failed to identify any acts which could constitute construction as defined in TRB. (Picker Decl., Ex. F., No. 1.) Plaintiff contacted contractors, took measurements, assessed costs and received estimates, and inspected the property. (Picker Decl., Ex. F., No. 1.) Thus, the burden shifts to Plaintiff to prove there is an issue of material fact regarding whether the property was under construction and, thus, covered by the Policy on the dates of the fires. Plaintiff has failed to meet its burden of showing there is a dispute of material fact. Defendant shall give notice.
2	Capital Resource Int'l v. Eplex, Inc. 2025-01533010 Motion to Set Aside/vacate Default Judgment	Defendants Eplex, Inc. and Sunhwa Lee's Motion to Set Aside Default and Default Judgment is GRANTED in part and DENIED in part. The Motion is GRANTED regarding Defendant Lee and DENIED as to Defendant Eplex, Inc. The Court finds the failure to timely file an answer and thus Defendant Lee's default and default judgment resulted from excusable neglect. "Within the context of Code of Civil Procedure section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929.) As an initial matter, Defendant Lee filed this motion on behalf of both defendants. However, except in a small claims proceeding, a corporation cannot represent itself. (<i>Merco Const. Engineers, Inc. v. Mun.Ct. (Sully-Miller Contracting Co.)</i> (1978) 21 Cal.3d 724, 731.) Nor can a non-lawyer representative of the corporation appear on the corporation's behalf as it would be tantamount to the unlicensed practice of law. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284, fn. 5.). Thus, the motion is DENIED as to Defendant Eplex. Defendant Sunhwa Lee is ordered to file an answer (on Lee's behalf) within 10 days.